

Brijesh Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 July 2016 · Writ-C No. 32515 of 2016 · Writ-C No. 32515 of 2016 · **Writ disposed of; relegated to clause 6.5**

HEADNOTE

A consumer who disputes an electricity bill on the ground that a different connection number has been written therein has a remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ petition was disposed of with a direction that if such an application is filed, the concerned authority shall pass an appropriate order within six weeks of production of a certified copy of the order.

FACTUAL SUMMARY

Brijesh Kumar filed Writ-C No. 32515 of 2016 in the High Court of Judicature at Allahabad against the correction of an electricity bill. His grievance was that a different connection number had been written in the bill. The State of Uttar Pradesh and three others were arrayed as respondents. Counsel for the petitioner and for the respondents were heard on 19 July 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

A writ challenging correction of an electricity bill on the ground that a different connection number has been written in the bill is not entertained on merits; the consumer has a remedy of applying under clause 6.5 of the U.P. Electricity Supply Code, 2005, and if that application is filed the concerned authority is to pass an appropriate order within six weeks of production of a certified copy of the Court's order. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer who disputes an electricity bill on the ground that a different connection number has been written therein has a remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A DIFFERENT CONNECTION NUMBER WAS IN FACT WRITTEN IN THE ELECTRICITY BILL AND WHETHER THE BILL REQUIRED CORRECTION

The Court did not examine the bill on merits and relegated the petitioner to clause 6.5. ¶ 1